Criminal cases in California - Assembly passes bill requiring prosecutors and judges to consider costs of sentencing

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SACRAMENTO >> This week, the California State Assembly passed Assembly Bill (AB) 1474, which would for the first time require prosecutors and judges to consider the economic costs associated with lengthy criminal sentences.

Authored by Assemblymember Jesse Gabriel (D-Woodland Hills), the measure would require prosecutors during sentencing to state on the record the estimated cost of their recommended sentence, and similarly require judges to state the estimated cost of the sentence imposed. Estimates would be based on standardized cost calculations provided by the Department of Finance and the Board of State and Community Corrections.

“Despite recent reforms in our approach to criminal and juvenile justice, California continues to lead the nation in spending on corrections,” said Assemblymember Gabriel. “This results in diminished revenues for other public policy priorities, including education, housing, human services, public health, and environmental protection. AB 1474 builds on momentum to promote fiscal accountability and end California’s failed experiment with mass incarceration. The measure will bring additional transparency to the sentencing process and help prosecutors and judges to consider the broader impacts of the sentences they recommend and impose. In so doing, AB 1474 will help to ensure that taxpayer resources are spent wisely and in a manner that truly advances justice and public safety.”

In recent years, there has been growing interest in how to reduce the excessive costs of state criminal justice systems, with efforts for reform gaining growing bipartisan support.

California is no exception. Over the past decade, both the legislature and the electorate have taken various actions to reduce the number of incarcerated people under the supervision of the California Department of Corrections and Rehabilitation (CDCR). Since the implementation of these policy changes, the state’s incarcerated population has declined by nearly one-quarter and the persons on parole population by nearly one-half. Despite this, CDCR spending has increased by over $3 billion, or approximately 30%, from about $9.7 billion in 2010-11 to an estimated $13.3 billion in 2019-20. As a result, California currently spends more on corrections than Texas and New York combined. A 2019 report by the California State Auditor found that CDCR had done little to verify the performance of its programs and suggested that it receive independent oversight to monitor its progress.

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